

Interdisciplinary studies may have a positive impact on the development of law and facilitate its continuous adjustment to complex challenges.¹⁵

Chapters 8 and 9 note that the practice of international tribunals and courts consolidates customary principles and rules of fresh water law. Moreover, judicial and diplomatic means exist to assist States in the resolution of water conflicts. Dispute settlement provisions are contained in the 1992 Convention on the Protection and Use of Transboundary Watercourses and International Lakes adopted under the aegis of the United Nations Economic Commission for Europe (UNECE Water Convention) and the 1997 UN Watercourses Convention.¹⁶ Contrary to the case of the law of the sea, for example, in fresh water law there are no generally agreed upon compulsory methods producing final and binding solutions. In certain treaties or cases, however, the litigant States have agreed or agree on jurisdictional methods of settlement, through the application of conventional and customary rules of international law.¹⁷

Chapter 9 explores conflict related to the development of hydropower installations. The production of hydroelectricity is becoming increasingly attractive to States. However, hydroelectric projects involve enormous investment and have significant impacts: social, economic, environmental and others. When hydroelectric power generation projects are constructed and operated on international watercourses, disputes between riparians often arise. International courts and tribunals have had to consider the rights of use of riparian states on transboundary rivers in the context of disputes concerning hydroelectricity projects. They have dealt with the antagonism between, on the one hand, the permanence and need for stability for the construction and operation of hydroelectric projects and, on the other hand, the development of international law and the changing scientific and environmental conditions and values concerning the transboundary rivers.¹⁸

3. SPECIFIC REGIMES OF FRESH WATER RESOURCES

Section 3 continues with the analysis, focussing on specific fresh water governance regimes. Chapter 12 gives an in-depth analysis of the right to water. Several international documents have recognized this right. These include the

¹⁵ A Correia Lima Macedo Franca, “‘Glocal’ water management and regional organizations: multi-level law and transjurisdiction’ *infra* Chapter 7.

¹⁶ A Tanzi, ‘Diplomacy, responsibility and accountability in transboundary water disputes’ *infra* Chapter 8.

¹⁷ L Caflisch, ‘Settlement of disputes concerning international watercourses’ *infra* Chapter 10.

¹⁸ D Azaria, ‘Fresh water and energy in international courts and tribunals: hydroelectricity installations on transboundary rivers’ *infra* Chapter 9.